

IN THE SENATE

SENATE BILL NO. 1394

BY JUDICIARY AND RULES COMMITTEE

AN ACT

RELATING TO CHILD CUSTODY; AMENDING SECTION 32-717E, IDAHO CODE, TO REVISE PROVISIONS REGARDING SUPERVISED VISITATION; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 32-717E, Idaho Code, be, and the same is hereby amended to read as follows:

32-717E. SUPERVISED VISITATION -- SUPERVISED ACCESS PROVIDERS -- RECORD CHECKS. (1) If the court orders supervised visitation in proceedings between parents in which custody and parenting time of a minor child is at issue, the court shall state in its decision the reasons for supervised visitation. The supervised visitation order shall be reviewed within forty-nine (49) calendar days of the initial order. Absent good cause shown by clear and convincing evidence, supervised visitation shall not be ordered or continued.

(2) All supervised visitation orders shall include clear, objective conditions for transition to unsupervised parenting time and periodic reviews at intervals not to exceed ninety (90) days, unless otherwise ordered by the court for good cause.

(3) Preference shall be given to unpaid supervised access providers agreed on by the parties.

(4) In cases in which a court has ordered that contact between a person and one (1) or more children shall take place only in the presence of an approved provider, or where the court has ordered supervised exchanges or transfers of one (1) or more children, the court may appoint an individual or entity as a supervised access provider to provide such supervised access or to facilitate such exchanges or transfers. The qualifications and duties of supervised access providers shall be as specified in rules adopted by the supreme court. A supervised access provider who is paid for providing supervised access services shall, prior to acting in such capacity and at his or her own cost, submit to a fingerprint-based criminal history check through any law enforcement office in the state providing such service. The criminal history check shall include a statewide criminal identification bureau check, federal bureau of investigation criminal history check, child abuse registry check, adult protection registry check and statewide sex offender registry check. A record of all background checks shall be maintained in the office of the supreme court of the state of Idaho.

(5) A parent's legitimate inability to attend supervised visitation shall not be deemed a voluntary relinquishment of time.

(6) Nothing in this section shall be construed to permit the use of supervised visitation as a punitive measure, leverage, or a substitute for proof of unfitness.

1 (7) The provisions of this section apply only to custody and parenting
2 time determinations between parents and shall not modify, limit, or super-
3 sede proceedings under chapter 16, title 16, Idaho Code.

4 SECTION 2. An emergency existing therefor, which emergency is hereby
5 declared to exist, this act shall be in full force and effect on and after
6 July 1, 2026.